IN THE LAHORE HIGH COURT, LAHORE
Present:
* Hon'ble Mr. Justice Shahid Waheed
* Hon'ble Mr. Justice Musarrat Hilali

Civil Appeal No. 176 of 2017
Citation: PLD 2017 Lah 759
Matter ID: MAT-CORP-2017-195

BETWEEN:
Habib Bank Limited ... Appellant / Petitioner
VERSUS
Election Commission of Pakistan ... Respondent

LEGAL TOPIC: Corporate - Winding Up & Insolvency
STATUTES CITED: Companies Act 2017, S. 301, Banking Companies Ordinance 1962, S. 40

JUDGMENT
1. This judgment disposes of Civil Appeal No. 176 of 2017, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Companies Act 2017, S. 301 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Companies Act 2017, S. 301 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 25 October 2017.